

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A COUNTY FINAL PLAT FOR WOODS LANDING ESTATES, 2ND FILING, A REPLAT OF TRACT 1, WOODS LANDING ESTATES, SITUATED IN THE SE¼ OF SECTION 14, T.14N., R.66W., OF THE 6TH P.M., LARAMIE COUNTY, WYOMING (LOCATED NORTHWEST OF THE INTERSECTION OF STOREY BOULEVARD AND WHITNEY ROAD)."

WHEREAS, Dean M. Woods Living Trust has subdivided said land in accordance with the statutes in such cases made and provided; and

WHEREAS, Dean M. Woods Living Trust, the owner of the above described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots, block, easements, and right-of-way; and

WHEREAS, the above described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the governing body; and the plat has been duly executed by the Development Office; and

WHEREAS, the above described subdivision plat is within one (1) mile of the boundaries of the City of Cheyenne, Wyoming, and therefore, governing body approval is required in accordance with W.S. 34-12-103; and

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the subdivision described as Woods Landing Estates, 2nd Filing, Laramie County, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2018.

(SEAL)
ATTEST:

MARIAN J. ORR, MAYOR

CAROL INTLEKOFER, CITY CLERK

STAFF REPORT - SUMMATION

Woods Landing Estates, 2nd Filing County Preliminary Plat (Expedited Review) Process

CASE NUMBER(s): UDC-18-00102

FILE CODE: WDLG 02

PREPARED BY: Seth Lloyd

MEETING DATES:	Planning Commission:	May 7, 2018	
	City Council:	May 14, 2018	1 st Reading
	Public Service Committee:	May 22, 2018	
	City Council:	May 29, 2018	2 nd Reading

REQUIRED DOCUMENTS SUBMISSION: The following required documents have been submitted and reviewed by staff.

- Master Application, Preliminary Plat Map, Final Plat Map, Drainage Study and Traffic Study from the original Woods Landing Estates plat, Drainage Worksheet, Transportation Worksheet, Waiver Request for Environmental Impact Assessment and Open Space Narrative,
- Photographs verifying fulfillment of the posted notice requirement (UDC 2.1.2.c.2.b.1) – submitted 2/2/2018
- Revised Final Plat Map – submitted 4/23/2018 (submitted in response to reviewing agency comments)
- Revised Final Plat Map – submitted 4/24/2018 (submitted in response to reviewing agency comments)

PLANNING COMMISSION RECCOMENDATION: At their regular meeting on May 7, 2018, the City of Cheyenne Planning Commission recommended approval of the County Final Plat by a vote of 4-0.

RECOMMENDATION: Staff recommends approval of the Expedited County Preliminary Plat, advancing the Final Plat to the Governing Body.

STAFF REPORT

Woods Landing Estates, 2nd Filing **County Preliminary Plat (Expedited Review) Process**

CASE NUMBER(s): UDC-18-00102 **SUBDIVISION CODE:** WDLG 02
PREPARED BY: Seth Lloyd
PUBLIC HEARING: May 7, 2016 (Planning Commission)

OWNER: Dean M Woods Living Trust
1934 Alicante St.
Davis, CA 95618

c/o Marc A Woods (307) 631-9300
4000 Central Ave, Ste 100
Cheyenne, WY 82001

AGENT: Steil Surveying & Development Services (307) 634-7273
Casey Palma
1102 W 19th Street
Cheyenne, WY 82001

PROJECT: Woods Landing Estates, 2nd Filing Final Plat

WORK DESCRIPTIONS: A final plat application for an area located within the one mile jurisdiction of the City of Cheyenne west of and adjacent to Whitney Road, north of Dell Range Boulevard.

LOCATION:

1. Legal Description: Tract 1, Woods Landing Estates situated in the SE¼ of Section 14, T.14N., R.66W., of the 6th P.M., Laramie County, Wyoming
2. Location: west of and adjacent to Whitney Road, north of Dell Range Boulevard
3. Address: unaddressed

SIZE: Total site: 4.81 acres

CURRENT ZONING: County AR Agricultural Residential

PROPOSED ZONING: County AR Agricultural Residential

EXISTING LAND USE: Vacant

PROPOSED LAND USE: Rural residential

SURROUNDING LAND USES:

SURROUNDING	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Rural Residential Undeveloped	County AR	County
South	Undeveloped	County A-2	County
East	Rural Residential	County A-1	County
West	Rural Residential	County AR	County

EXPEDITED REVIEW:

This plat is being pursued as an expedited application. An expedited review process is a concurrent preliminary and final plat. A project may be eligible for an expedited review when the proposal contains no significant planning, design or engineering issues. In other words, proposals that meet all applicable regulations and generally meet the review criteria for preliminary and final plat may be eligible for the concurrent preliminary and final plat process.

Due to meeting the expedited plat criteria set forth in Section 2.1.2.c(3) of the Cheyenne Unified Development Code, Staff recommends allowing the plat to proceed as an expedited application.

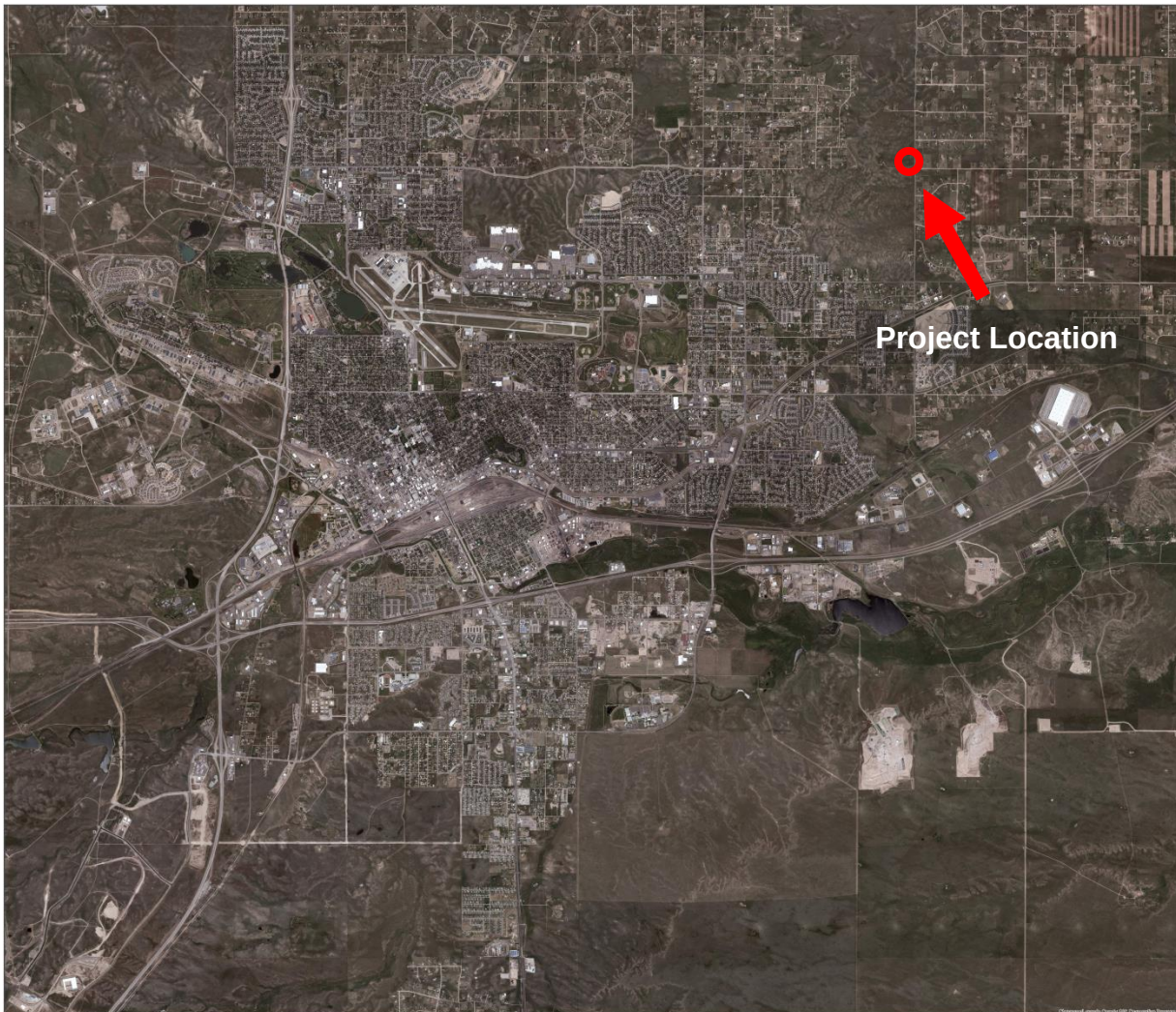
EXECUTIVE SUMMARY:

This plat application proposes extinguishing easements on one lot in the County. The easements being removed are no longer necessary to service the Woods Landing Estates development. Regional easements and easements still needed to service the development remain in place.

This land is outside the Urban Service Boundary in an area designated as Rural Residential by PlanCheyenne. This property is expected to develop as low-density residential without connection to urban services such as sewer. The current lot meets these expectations. This land is zoned County AR, and the lot is not changing size or shape. The proposed plat will not create any undue influence upon infrastructure, the surrounding area, or future development.

Due to meeting the review criteria set forth in Section 2.1.2.d and 2.1.3.d of the Cheyenne Unified Development Code, staff recommends the Planning Commission approve this expedited plat, advancing the final plat to the Governing Body.

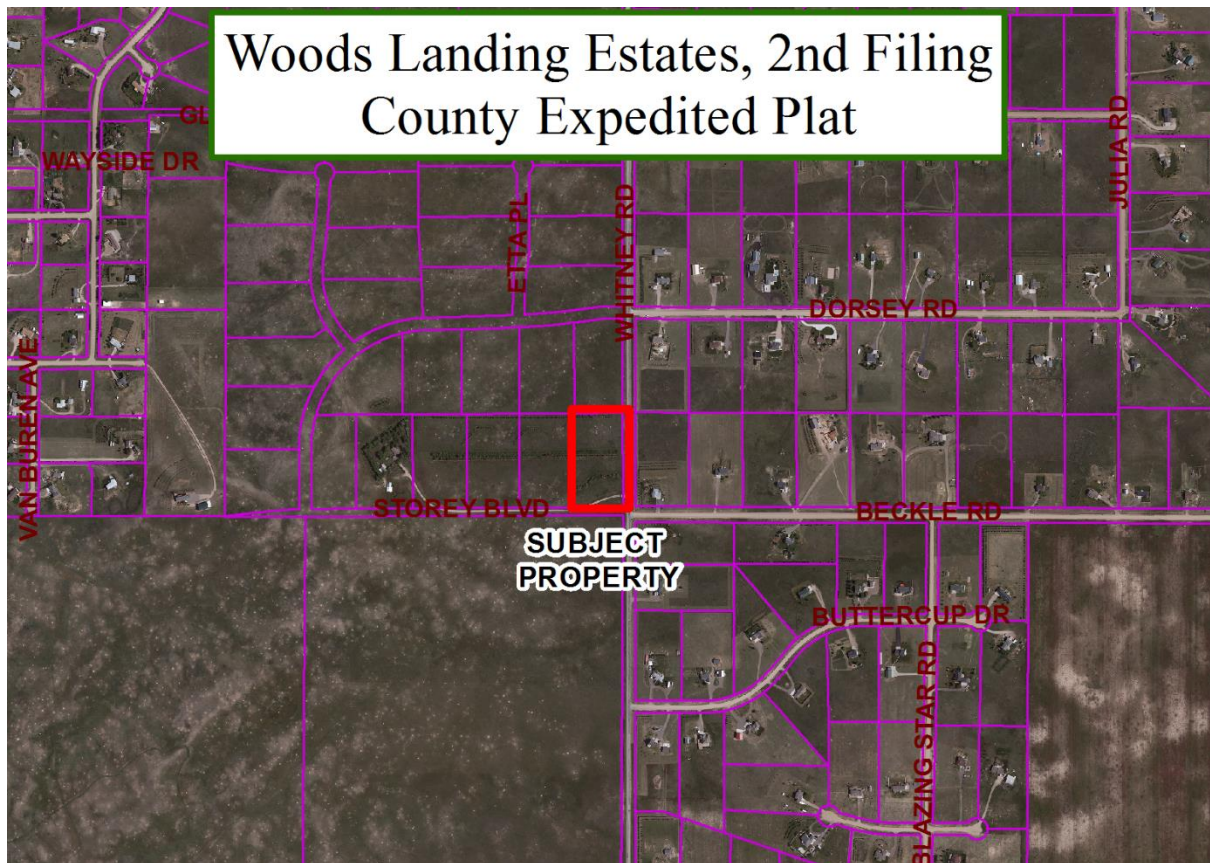
LOCATION/VICINITY MAP:



Map # 1 – Project Location/ Vicinity Map

Source: Cheyenne/Laramie County GIS Cooperative Program

AERIAL OF SUBJECT PROPERTY:



Map # 2 - Site aerial highlighting subject property located northwest of the intersection of Whitney Road and Storey Boulevard

Source: Cheyenne/Laramie County GIS Cooperative Program

VIEWS OF SUBJECT PROPERTY:



Photograph #1 – Image of the proposed plat from Whitney Road, facing west. This photo, taken in 2016, shows the original access drive.

Source: Development Office



Photograph #2 – proposed plat from the intersection of Whitney Road and Storey Blvd., facing northwest. This photo, taken this year, shows the newly-built Storey Blvd. to the left, and the abandoned access drive to the right.

Source: Development Office

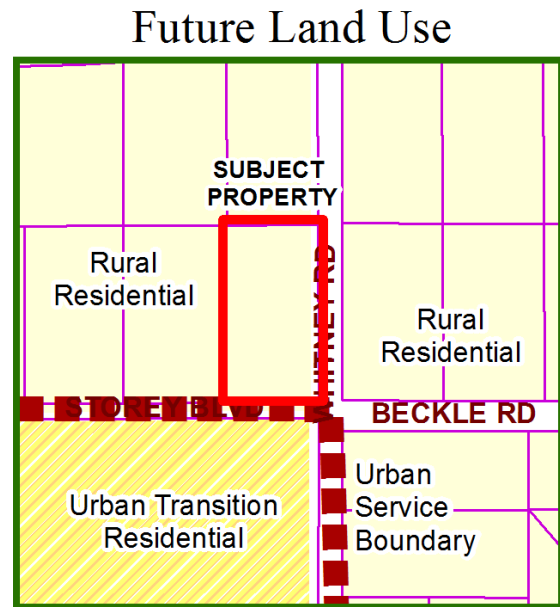
PRELIMINARY PLAT DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed preliminary plat, the Staff, Planning Commission and City Council shall use the following 8 criteria, as found in Section 2.1.2.d:

1. PLANCHEYENNE - *The application is in accordance with the development policies and physical patterns identified in PlanCheyenne.*

This application is in conformance with PlanCheyenne.

The future land use map identifies the subject property and most of the immediately surrounding area as Rural Residential and outside the Urban Service Boundary. This land is expected to develop with rural residential-style development, and the existing lots match the expected style of development.

Land to the south is designated Urban Transition Residential and is within the Urban Service Boundary. This land to the South is expected to develop with lower-density urban residential uses within City limits and connected to City services. This plat will not unduly affect the ability of the land to the south to develop as anticipated.



Map #3 – Future Land Use
Source: Cheyenne/Laramie County GIS Cooperative Program

2. PLANNING - *The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities.*

This application proposes extinguishes easements on one lot in a previously platted area. The application will not have an adverse effect on the current infrastructure.

3. SUBDIVISION STANDARDS - *Division of land meets the purposes, intent, and all applicable standards in Article 4.*

Transportation Network:

The transportation network in this area of the County is well established and no additions to the street network are proposed.

Community Facility Fees:

This land is not within City limits. Plat fees are not required unless this property annexes to the City in the future. If annexed, Park Acquisition and Infrastructure Fees would be due at \$3,360(4.8 acres at \$350/acre for each fee).

Open Space:

This division of land is not required to provide open space.

4. PHASING - *Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned.*

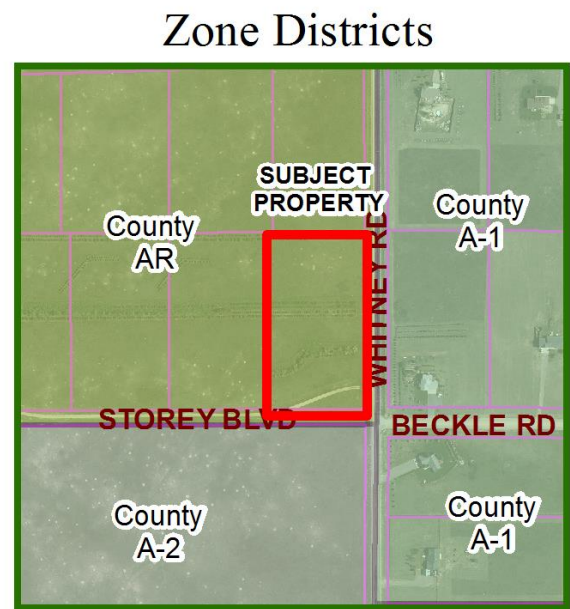
No phasing is proposed with this project.

5. STUDIES - *The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts.*

The applicant re-submitted the Drainage and Traffic Studies associated with the original Woods Landing Estates Plat (in 2016). Traffic and Drainage Worksheets were also submitted for just this plat area. The applicant also submitted a waiver of Environmental Impact Assessment request, as the proposed development pattern of the land entirely proposed. Engineering and Environmental Health found no major issues with the project as presented.

6. ZONING - *All proposed lots shall be buildable lots according to the existing or proposed zoning district standards, and result in site design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district. All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance.*

This land is currently zoned County AR. The proposed lot is similar in size to surrounding parcels, and no changes to the current lot size is proposed.



Map #4 – Zone Districts
Source: Cheyenne/Laramie County GIS
Cooperative Program

7. SURROUNDING DEVELOPMENT - *The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property.*

This project is proposing extinguishes easements on one lot. The access easement is no longer necessary as Storey Blvd. has now been built (to a County road standard). The other easements being extinguished are no longer necessary as the facilities the easements were intended to accommodate have been placed in a different location in the Woods Landing Estates development. The rural residential parcels in the vicinity are currently of a similar size to the proposed parcel. There will be no undue influences on nearby properties through this platting action.

8. PUBLIC HEALTH, SAFETY, AND WELFARE – *Weather the application will harm the public health, safety or general welfare.*

The proposed plat would not adversely affect the public health, safety, or general welfare.

FINAL PLAT DATA: In reviewing, providing comments, and making recommendations and decisions on a proposed final plat, the Staff, Planning Commission and City Council shall use the following 3 criteria, as found in Section 2.1.3.d:

1. The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan.
2. The application meets any conditions or modifications of the approved preliminary plat.
3. The application meets the purposes, intent, and applicable standards of Article 4.

As this plat is being pursued as an expedited application, review criteria 1 and 2 are not applicable. Review criterion 3 is also found in the Preliminary Plat process (as criterion 3) and is covered in subsection 3 above.

REVIEW

REVIEWING AGENCIES WITH COMMENTS:

- City Surveyor (Jack Studley)
 - **(FULFILLED BY REVISED MAP)** 1. The title block is required to be modified as follows: "A REPLAT OF TRACT 1, WOODS LANDING ESTATES, BEING A PORTION OF THE SE1/4 OF SECTION 14, etc.etc."
 - **(FULFILLED BY REVISED MAP)** 2. A survey tie to two City Control monuments is required.
- Laramie County Assessor (Clarice Blanton)
 - **(FULFILLED BY REVISED MAP)** The title block needs to include Tract 1, Woods Landing Estates.

- Urban Planning (Seth Lloyd)
 - o **(FYI)** Lot is outside the urban service boundary and designated Rural Residential by PlanCheyenne. This area is not anticipated to be annexed to the City or develop at urban densities. The current lot size is appropriate for this area.

REVIEWING AGENCIES WITHOUT COMMENTS:

- Black Hills Corporation (Dustin McKen)
- Board of Public Utilities (Linda Gunter)
- Building (Amanda Barto)
- City Engineer (Amy Allen)
- Community Recreation & Events (Teresa Moore)
- Development (Susana Montana & Seth Lloyd)
- Engineering Department – Drainage (Michael Vinson)
- Engineering – General (Mark Escobedo)
- Engineering – GIS (Gary Stogsdill)
- Fire Department (Jim Schamerhorn)
- Laramie County Environmental Health Department (Roy Kroeger)
- Laramie County School District #1 (Chris Hout)
- Metro Planning Office (Tom Mason & Nancy Olson)
- Public Works – Traffic (Nathan Beauheim)
- Suncor Pipeline (Dillon Ohrt)

REVIEWING AGENCIES NOT RESPONDING:

- CenturyLink (Bob Bates & Kimberly Hessell)
- Charter (Bryan VanKirk)
- Emergency Management Agency
- Laramie County Attorney (Mark Voss)
- Laramie County Clerk (Laura Busey)
- Laramie County Dispatch (Glen Crumpton)

NOTE: As a County Plat, County agencies will have the opportunity to review and comment on this plat through the County's review process.

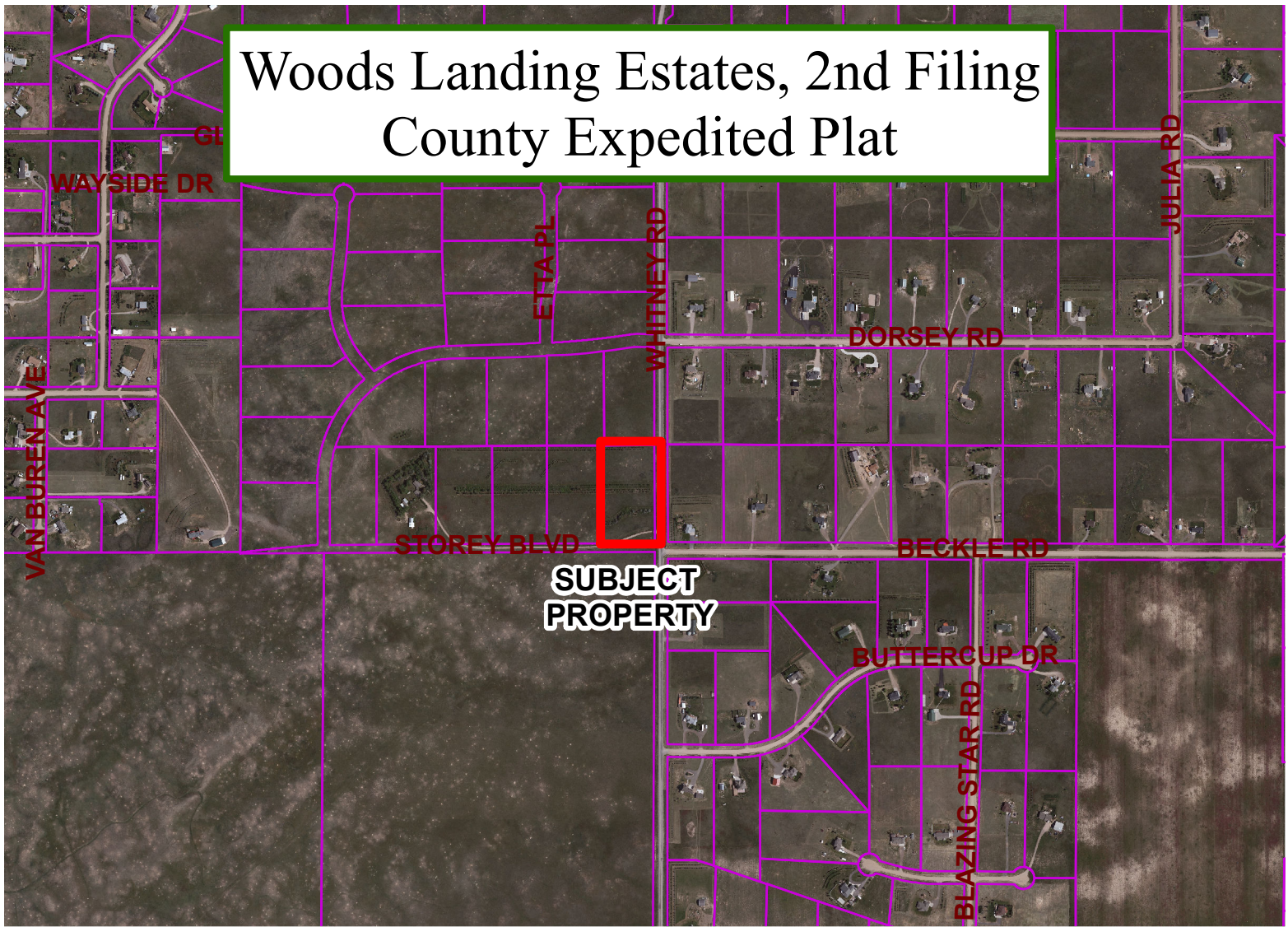
OTHER COMMENTS RECEIVED:

- None

Attachments: Aerial Map – produced by staff
 Plat Map(s) – submitted by applicant

cc: Owner
 Agent/Applicant
 File

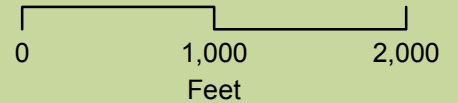
Woods Landing Estates, 2nd Filing County Expedited Plat



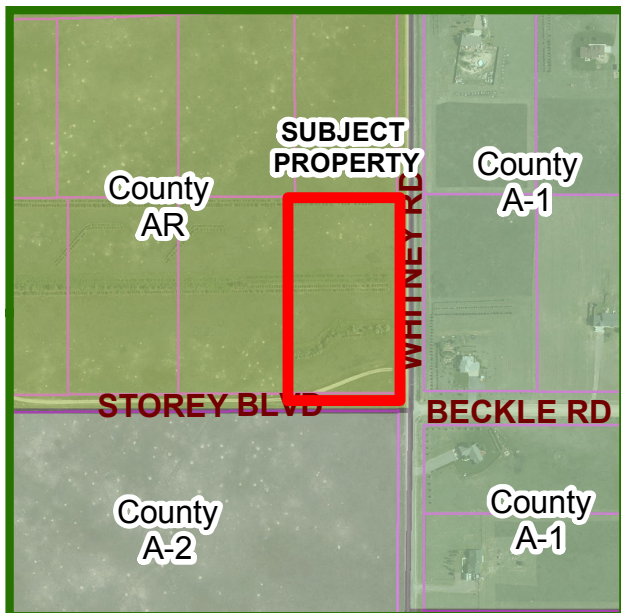
Application Number
County Plat
UDC-18-00102

Applicant: Dean M Woods Living Trust
Mark Woods
Agent: Casey Palma
Steil Surveying & Development Services

Scale applies to
above map only

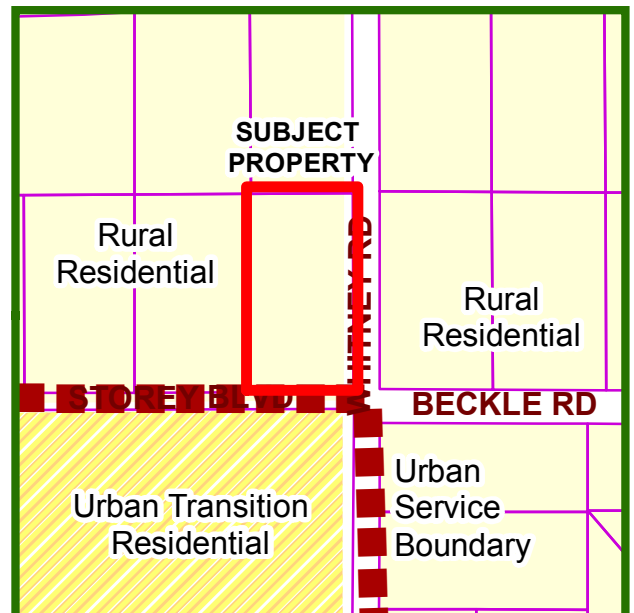


Zone Districts



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



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